

UNITED STATES DISTRICT COURT
DISTRICT OF COLUMBIA

DONALD N. SPERLING, Esq., as Personal)
Representative of the Estate of Clara)
Maribel Oxlaj-Gonzalez, Deceased)
1413 Spring Road)
Washington, D.C. 20010)

Plaintiff,)

v.)

WASHINGTON METROPOLITAN AREA)
TRANSIT AUTHORITY)
600 Fifth Street, NW)
Washington, D.C. 20001)

Defendant.)

WASHINGTON METROPOLITAN AREA)
TRANSIT AUTHORITY)
600 Fifth Street, NW)
Washington, D.C. 20001)

Third Party Plaintiff,)

v.)

THE DISTRICT OF COLUMBIA)
John A. Wilson Building)
1350 Pennsylvania Ave. NW)
Washington, D.C. 20004)

Serve:)

Adrian M. Fenty,)
Mayor)

John A. Wilson Building)
1350 Pennsylvania Ave. NW)
Washington, D.C. 20004)

and)

Civil No. 07-CV-557
J. Kollar-Kotelly

General Counsel)
Linda Singer)
Darlene Fields)
Gail Rivers)
Tonya Robinson)
Office of the Attorney General)
441 4th St., N.W., 6th Fl. South)
Washington, D.C. 20001)
)
Third Party Defendant.)

THIRD-PARTY COMPLAINT

The Defendant and Third-Party Plaintiff, Washington Metropolitan Area Transit Authority ("WMATA"), by and through undersigned counsel, files this Third-Party Complaint against the District of Columbia, Third-Party Defendant stating as follows:

1. WMATA has been sued by the Plaintiff, Donald N. Sperling, Esq., as Personal Representative of the Estate of Clara Maribel Oxlaj-Gonzalez, Deceased, who claims injuries arising from a motor vehicle accident which occurred on January 16, 2007, at approximately 10:28 p.m., on Park Rd., N.W., near its intersection with 16th St., NW Washington, D.C. Attached are copies of all pleadings filed in the action to date. Plaintiff claims that the operator of the WMATA bus was negligent in striking and causing the death of the deceased, Clara Maribel Oxlaj-Gonzalez.

2. WMATA denies that the Plaintiff is entitled to recover at all. However, in the event that the Plaintiff secures a judgment against WMATA, WMATA is entitled to indemnification and/or contribution from Third-Party Defendant, the District of Columbia. Specifically, the District of Columbia was negligent in failing to maintain the presence and visibility of its sign which informed pedestrians that buses could make left turns lawfully at

the intersection where the Plaintiff was struck by a WMATA bus.

WHEREFORE, Defendant and Third-Party Plaintiff, WMATA, seeks judgment by way of contribution and/or indemnity against Third-Party Defendant, the District of Columbia, for all sums for which WMATA might be adjudged liable to the Plaintiff.

Respectfully submitted,

WASHINGTON METROPOLITAN AREA
TRANSIT AUTHORITY

Carol B. O'Keefe, #445277
General Counsel

_____/s/_____
Mark F. Sullivan, #430876
Deputy General Counsel

_____/s/_____
Sara L. Bloom #459926
Associate General Counsel

_____/s/_____
Donna L. Gaffney #428725
Assistant General Counsel
600 Fifth Street, N.W.
Washington, D.C. 20001
(202) 962-2420

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on April 17, 2007, a copy of the foregoing WMATA's Third Party Complaint sent certified mail to:

Adrian M. Fenty, Mayor
on behalf of the
District of Columbia
John A. Wilson Building
1350 Pennsylvania Ave. NW
Washington, D.C. 20004

and

Linda Singer
General Counsel
Darlene Fields
Gail Rivers
Tonya Robinson
Office of the Attorney General
441 4th St., N.W., 6th Fl. South
Washington, D.C. 20001

and by regular mail to:

Jeffrey Fenster
Stein, Sperling, Bennett, DeJong, Discoll & Greenfeig, P.C.
25 West Middle Lane
Rockville, MD 20850

Sara L. Bloom